

25STCV00641 25STCV00641

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-15

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Case Number: 25STCV00641 Hearing Date: July 15, 2026 Dept: 512

HEARING DATE: Weds.,

July 15, 2026 JUDGE/DEPT: Mkrtchyan/512

CASE NAME: Merlos,

et al. v. Queen Anne COMP. FILED: 01-10-25

Properties, LLC

CASE

NUMBER: 25STCV00641

NOTICE: NO

PROCEEDINGS: PETITIONS

FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION OF PROCEEDS OF
JUDGMENT FOR MINOR

MOVING PARTY: Petitioner

Lesly Alay on behalf of minor Claimants

Emma Valentina Herrera-Alay and Scarlett Yamileth Herrera-Alay

RESP. PARTY: None

PETITION TO APPROVE COMPROMISE OF A DISPUTED CLAIM

(CCP § 372, CRC, rule 7.950.5.)

TENTATIVE RULING:

The

Petitions for Approval of Compromise of Claim or Action or Disposition of

Proceeds of Judgment for Minor filed on behalf of minor Claimants Emma Valentina Herrera-Alay and Scarlett

Yamileth Herrera-Alay are CONTINUED to

August 26, 2026 at 8:30 a.m. in Department 512 of the Stanley Mosk Courthouse.

At

least 16 court days prior to the next scheduled hearing, Petitioner is to file

and serve proof of service and notice of hearing regarding both Petitions and

supplemental papers addressing the deficiencies discussed herein.

Considering

the settlement agreement between the parties, the Court advances and VACATES

the Trial date of September 28, 2026 and Final Status Conference date of

September 18, 2026. The Court schedules an Order to Show Cause Re: Dismissal

for August 26, 2026 at 8:30 a.m.

Moving

parties are ordered to give notice.

SERVICE:

[

] Proof of Service Timely Filed (CRC, rule 3.1300) NO

[

] Correct Address (CCP §§ 1013, 1013a) NO

[

] 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) NO

OPPOSITION: None filed as of July 12,

2026 [] Late [X] None

REPLY: None filed as

of July 12, 2026 [] Late [X]

None

ANALYSIS:

I.

Background

On

January 10, 2025, Plaintiffs Jonathan Merlos and Lesly Alay ("Plaintiffs") and minor Plaintiffs Emma Valentina Herrera-Alay ("E.V. Herrera-Alay") and Scarlett Yamileth Herrera-Alay ("S.Y. Herrera-Alay"), by and through their Guardian Ad Litem Alay ("minor Plaintiffs") filed the instant action against Defendant Queen Anne Properties, LLC ("Defendant") and Does 1-50, alleging causes of action for Breach of Warranty of Habitability, Breach of the Covenant of Quiet Enjoyment, Negligence, and Breach of Contract. (Compl., p. 1.)

On

January 27, 2025, Petitioner Alay was appointed Guardian Ad Litem of S.Y. Herrera-Alay. (1/27/25 Order.)

On

January 30, 2025, Petitioner Alay was appointed Guardian Ad Litem of E.V. Herrera-Alay. (1/30/25 Order.)

On

May 2, 2025, Defendant filed an Answer.

On

June 23, 2026, Petitioner filed the instant Petitions for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor (the "Petitions") on behalf of minor Plaintiffs. Petitioner also filed Proposed Orders.

No

Opposition has been filed.

II.

Procedural

Issues

As an initial matter, the Petitions are untimely filed and served pursuant to Code of Civil Procedure section 1005.

Further, there is a discrepancy in Defendant's service address used for service of the Petitions – the Answer lists Defendant's electronic service address as "" and the Court's files also include electronic service addresses for Defendant of "" and ""; however, the Petitions were served to ""; ; ." (Petitions, Proofs of Service.)

The Court may not grant the Petitions absent proper service and notice of hearing.

III.

Legal

Standard & Discussion

Court approval is required for all settlements of a minor's claim. (Prob. Code §§ 3500, 3600, et seq.; Code of Civ. Proc., § 372.) " '[W]ithout trial court approval of the proposed compromise of the ward's claim, the settlement cannot be valid. [Citation.] [¶] Nor is the settlement binding [on the minor] until it is endorsed by the trial court.' " (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.) A minor, like Claimant, "shall appear either by a guardian or conservator of the estate or by a guardian ad litem appointed by the court in which the action or proceeding is pending, or by a judge thereof, in each case." (Code Civ. Proc., § 372, subd. (a)(1).)

To obtain court approval of the settlement of a minor's claims, the petitioner must file a "verified petition for approval of the settlement and must disclose 'all information that has any bearing upon the reasonableness of the compromise.' " (Barnes v. Western Heritage Ins. Co. (2013) 217 Cal.App.4th 249, 256, fn. 4, citing Cal. Rules of Court, rule 7.950.)

A.

Petition

of Emma Valentina Herrera-Alay

The Court

finds the Petition and Proposed Order are substantially complete, and the proposed settlement is fair and reasonable in light of minor Plaintiff's damages.

However,
the Petition is CONTINUED to allow Petitioner to file supplemental papers
addressing the deficiencies noted herein.

B.
Petition
of Scarlett Yamileth Herrera-Alay

The Court
finds the Petition and Proposed Order are substantially complete, and the
proposed settlement is fair and reasonable in light of minor Plaintiff's
damages.

However,
the Petition is CONTINUED to allow Petitioner to file supplemental papers
addressing the deficiencies noted herein.

IV.
Conclusion
& Order

For
the reasons stated above, The Petitions for Approval of Compromise of Claim or
Action or Disposition of Proceeds of Judgment for Minor filed on behalf of
minor Claimants Emma Valentina Herrera-Alay and Scarlett Yamileth Herrera-Alay
are CONTINUED to August 26, 2026 at 8:30 a.m. in Department 512 of the Stanley
Mosk Courthouse.

At
least 16 court days prior to the next scheduled hearing, Petitioner is to file
and serve proof of service and notice of hearing regarding both Petitions and
supplemental papers addressing the deficiencies discussed herein.

Considering
the settlement agreement between the parties, the Court advances and VACATES
the Trial date of September 28, 2026 and Final Status Conference date of
September 18, 2026. The Court schedules an Order to Show Cause Re: Dismissal
for August 26, 2026 at 8:30 a.m.

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